

POLITY 21 - PANEL 1/12

CONSTITUTIONAL LOCATION AND ORIGIN

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| -> 1861 High Courts Act; Calcutta, Bombay and Madras opened in 1862; Allahabad
| in 1866.

| -> Articles 214-231 create and protect High Courts; Articles 233-237 protect
| subordinate courts.

| -> Integrated hierarchy: Supreme Court -> High Court -> district and
| subordinate courts.

| -> Core line: territorial constitutional adjudication with national doctrinal
| unity.

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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 2/12

ESTABLISHMENT, COMPOSITION AND COMMON COURTS

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| -> Article 214: High Court for each State; Article 216: Chief Justice plus
| other judges.

| -> Article 231: Parliament may establish a common High Court for States and/or
| Union Territories.

| -> Seventh Amendment, 1956 reorganised the common-court provisions; Article
| 232 stands repealed.

| -> Dated control: 25 High Courts on 7 September 2026; no one-State-one-court
| inference.

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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 3/12

APPOINTMENTS AND COLLEGIUM

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- | -> Article 217: President appoints after consultation with CJI and Governor;
| HC Chief Justice also for puisne judges.
- | -> Second Judges Case (1993): judicial primacy; Third Judges Reference (1998):
| plural consultation.
- | -> HC initiation: Chief Justice plus two senior colleagues; SC stage: CJI plus
| two senior-most judges.
- | -> 99th Amendment/NJAC Act invalidated in 2015; collegium remains operative,
| not textually named.

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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 4/12

QUALIFICATIONS, TENURE AND INDEPENDENCE

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| -> Article 217(2): citizen plus 10 years judicial office OR 10 years High
|      Court advocacy.
|
| -> Articles 219-221: oath before Governor/appointee; retirement 62; restricted
|      later practice; protected conditions.
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| -> Article 218 applies Article 124(4)-(5) removal: proved
|      misbehaviour/incapacity and parliamentary special majority.
|
| -> Article 229(3) charges High Court expenses on the State Consolidated Fund;
|      Article 360 is the salary exception.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 5/12

TRANSFER AND TEMPORARY JUDGES

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| -> Article 222: President transfers after CJI consultation; consent not an
|     express constitutional condition.
|
| -> Sankalchand Sheth (1977) and Third Judges Reference require public-interest
|     institutional safeguards.
|
| -> Article 223 Acting CJ; Article 224 additional judge up to two years or
|     acting judge for absence.
|
| -> Article 224A: retired HC judge sits on CJ request, prior presidential
|     consent and retiree consent.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 6/12

RECORD, JURISDICTION AND SOURCE FIREWALL

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| -> Article 215: court of record plus constitutional contempt power; 1971 Act
|   regulates it.
|
| -> Article 225 preserves existing jurisdiction subject to Constitution and
|   competent legislation.
|
| -> Original civil, appellate, election, admiralty and commercial powers are
|   charter/statute-specific.
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| -> Never universalise one High Court's original jurisdiction, bench
|   arrangement or pecuniary rule.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 7/12

ARTICLE 226 WRIT JURISDICTION

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| -> Article 226 covers Fundamental Rights and any other legal purpose; Article
| 32 is a Fundamental Right for FR enforcement.

| -> Article 226(2): material cause of action wholly or partly in territory;
| residence alone is insufficient.

| -> Whirlpool (1998)/Radha Krishan (2021): alternative remedy is restraint, not
| jurisdictional extinction.

| -> Five writs: habeas corpus, mandamus, prohibition, certiorari and quo
| warrant; PIL relaxes standing.

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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 8/12

REVIEW, TRIBUNALS AND SUPERVISION

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| -> L. Chandra Kumar (1997): Articles 226/227 review is Basic Structure;
|   tribunals supplement courts.
|
| -> Madras Bar Association cases: tribunal independence, tenure and selection
|   must meet judicial standards.
|
| -> Article 227: judicial/administrative superintendence, no routine appeal;
|   Armed-Forces-law exception.
|
| -> Article 228: withdraw substantial constitutional question; decide case or
|   return after ruling.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 9/12

ADMINISTRATION, TERRITORY AND BENCHES

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| -> Article 229: Chief Justice controls staff; bounded Governor role; expenses
|   charged.
|
| -> Article 230: Parliament extends/excludes High Court jurisdiction to/from a
|   Union Territory.
|
| -> Article 231 common High Court; Article 241 separate UT court route.
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| -> Principal seat, permanent bench and circuit sitting depend on specific
|   statutes/orders and are not synonyms.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 10/12

SUBORDINATE JUDICIARY: ARTICLES 233-237

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| -> Article 233: Governor plus High Court consultation; direct route has seven-
|     year advocacy and recommendation.
|
| -> Article 233A: Twentieth Amendment, 1966 validation of specified past
|     appointments and judgments.
|
| -> Article 234: Governor rules after SPSC and High Court consultation; Article
|     235: High Court career control.
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| -> Articles 236-237 define judicial service and permit notified application to
|     classes of magistrates; Article 50 separates.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

POLITY 21 - PANEL 11/12

RECRUITMENT, ACCESS AND SPECIALISED COURTS

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| -> Chandra Mohan (1966): executive officers cannot bypass the judicial-service
|      scheme.
|
| -> Ranga Muhammad (1967): transfer of serving district judges lies within
|      Article 235 control.
|
| -> AIJA series, Malik Mazhar Sultan and 2025 rulings address conditions,
|      calendars, practice and promotion.
|
| -> NALSA/Lok Adalat, Gram Nyayalaya, Family and Commercial Courts remain
|      statute-bound institutions.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform

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| -> Article 312 can create AIJS only after Rajya Sabha resolution and law;
| Article 312(3) excludes posts below district judge.

| -> e-Courts Phase III: 2023-2027, Rs 7,210 crore; NJDG is dated administrative
| evidence, not adjudication.

| -> High Court Bar Association Allahabad (2024): no automatic six-month
| vacation of all interim stays.

| -> Answer spine: source -> mechanism -> named authority -> consequence ->
| limitation -> targeted reform.
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ANSWER ROUTE

source -> mechanism -> named authority -> analysis -> qualification -> targeted reform